

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: June 4, 2026

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1.	Schmitt v. Quintilone 24-1372117	The unopposed motions to be relieved as counsel of record for plaintiffs Brandon Schmitt and Clair Olson-Schmitt filed by Austiag H. Parineh and Parineh Law, APC are GRANTED. Moving counsel has complied with the procedural requirements of C.R.C. 3.1362. The Court finds good cause to grant the relief requested on the merits.

		Accordingly, the motions are GRANTED. The orders granting relief are effective upon filing of a proof of service of the signed orders on the clients. Moving counsel shall submit amended proposed orders that list the current trial date. <i>Moving counsel is ordered to give notice of these rulings.</i>
2.	Stewart v. Three Phase Electric, Inc. 22-1248530	Before the Court is a motion by Defendants Kimberly Weiss and Three Phase Electric, Inc. to vacate the default and default judgment entered against them. The motion is GRANTED, as set forth herein. <i>Code of Civil Procedure section 473</i>, subdivision (d), provides, "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." Even where relief is no longer available under statutory provisions, a trial court generally retains the inherent power to vacate a default judgment or order on equitable grounds where a party establishes that the judgment or order was void for lack of due process (<i>Ansley v. Superior Court</i> (1986) 185 Cal.App.3d 477, 488) or resulted from extrinsic fraud or mistake. (<i>Olivera v. Grace</i> (1942) 19 Cal.2d 570, 576-578; <i>Sporn v. Home Depot USA, Inc.</i> (2005) 126 Cal.App.4th 1294, 1300 (citing text); <i>Bae v. T.D. Service Co.</i> (2016) 245 Cal.App.4th 89, 97.) " '[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation.]' [Citation.]' Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service. [Citations.]" (<i>Ellard v. Conway</i> (2001) 94 Cal.App.4th 540, 544" "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.' " (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413; Footnote 35 omitted.) Here, the proof of service at ROA 12 states that on 3/9/22, plaintiff personally served Three Phase Electric, Inc. by serving "CSC – Lai Saevang – Person Authorized to Accept Service of Process" at 2710 Gateway Oaks Drive, Suite 150N, Sacramento, CA 95833 at 1:39 p.m. Defendants submit evidence showing "That person is not, and has never been, an officer, employee, or authorized agent for service of process for Three Phase Electric, Inc. The address listed is not, and has

		never been, our corporate office or mailing address.” (Weiss Decl. ¶13) The declaration submitted by plaintiff’s attorney, Vasu Vijayraghavan, does not attempt to explain why CSC in Sacramento was served with the complaint. Instead, in the opposition, plaintiffs discuss attempts to serve the defendants with various documents in 2025 and 2026. These arguments are not persuasive and do not establish that Three Phase Electric, Inc. was served with the summons in 2022. The proof of service at ROA 10 states that on 3/14/22 at 1:11 p.m. at 28 Rancho Cir., Lake Forest, CA 92630, plaintiff personally served Kimberly Weiss individually and as corporate officer of Three Phase Electric. Ms. Weiss states that she was not present at 28 Rancho Cir., Lake Forest, CA 92630 at 1:11 p.m. on 3/14/22. She states she was at Nordstrom getting a dress tailored for her son’s wedding. (Weiss Decl. ¶4) She has submitted an email confirmation from Nordstrom stating that she had a 30 minute appointment on 3/14/22 beginning at 1:00 p.m. at “Nordstrom The Shops at Mission Viejo” for “Women’s Alterations Fitting.” (Exh. B to Weiss Decl.) In their opposition, plaintiffs fail to show the summons was served on Kimberly Weiss in any capacity. Plaintiff argues that Weiss’s absence from the company’s office at the time stated on the proof of service constituted “inexcusable neglect” in the form of “a CEO prioritizing a ‘dress fitting’ to accomplishing her role as CEO.” (Opp. at 5:6-9) This argument is not persuasive. Based on the foregoing, the Court finds the summons and complaint were not properly served on defendants Kimberly Weiss and Three Phase Electric, Inc. Therefore, the motion is GRANTED. The judgment entered on March 17, 2023 at ROA 40 and the default entered on June 27, 2022 at ROA 17 are VACATED. The Defendants’ verified Answer at ROA 101 is deemed filed and served as of this date. <i>Defendants are ordered to give notice.</i>
3.	Kim v. Cho 1482420	Before the Court is a motion by defendant Bong Nam Cho to set aside the entry of default. The motion is GRANTED, as set forth herein. In this motion, Mr. Cho seeks to set aside the default entered by Plaintiff John Kim on December 23, 2025, as shown in ROA 15. <i>Code of Civil Procedure §473(b)</i> states, in pertinent part, “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

		Here, Mr. Cho has submitted a declaration explaining the reasons he did not timely file an answer to the plaintiff's complaint. The Court finds that Mr. Cho's mistake was the result of his excusable neglect. In addition to submitting evidence of his mistake, Cho has submitted a proposed answer as required. While plaintiff argues Mr. Cho's declaration is not to be believed and that sanctions are appropriate, based on the Court's review of the pleadings in this case and the parties' briefs, the Court disagrees. The Court does not find that either a penalty, sanction or attorney's fees are appropriate under Section 473(c). Accordingly, the motion is GRANTED and Mr. Cho is ORDERED to file the proposed answer attached as Exhibit A to ROA 34 within 5 days. <i>Mr. Cho is ORDERED to give notice.</i>
4.	Jergensen v. NAHS Holding, Inc. 24-1411114	Before the Court is a motion by Defendants NAHS Holding, Inc., NAHS SouthEast, Inc., Mark Walton and Michael Moore to continue the trial. The motion is GRANTED, in part, as set forth herein. "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (<i>Rule 3.1332(c)</i>.) "A motion for continuance is addressed to the sound discretion of the trial court." (<i>Oliveros v. County of Los Angeles</i> (2004) 120 Cal. App. 4th 1389, 1395.) A "trial court may not refuse to hear a summary judgment motion filed within the time limits of section 437c." (<i>Sentry Ins. Co. v. Superior Court</i> (1989) 207 Cal.App.3d 526, 529 [trial court erred in refusing to hear timely filed motion for summary judgment by denying moving party's motion for order shortening time and motion for continuance of trial date].) Here, the defendants have filed a motion for summary judgment within the time limits of §437c which requires a motion to be heard more than 30 days before trial. (<i>CCP §437c(a)(3)</i>.) If not for the congestion of the Court's calendar, the motion was filed within sufficient time to be heard on July 23, 2026, which was more than 30 days before the August 24, 2026 trial date. However, the motion for summary judgment is scheduled for October 22, 2026. The Court finds good cause to continue the trial until after the pending motion for summary judgment. Accordingly, the Court will GRANT the Defendants' request and CONTINUE the August 24, 2026 trial to November 30, 2026 at 9:00 a.m. in Dept. C20. All dates will be tied to the new trial date. <i>Defendants shall give notice.</i>
5.	Gome z v. Raines	(Case dismissed)

	25-1491358	
6.	Hanson v. FCA US LLC 25-1465366	(Withdrawn)
7.	Henley v. Universal Protective Service, LP 25-1532290	The motion to compel arbitration of the claims of plaintiff Michael Henley (Plaintiff) filed by defendant Universal Protection Service, LP (Universal) is GRANTED as to the claims asserted against Universal. The motion is brought under both the Federal Arbitration Act ("FAA") and the California Arbitration Act ("CAA"). Both the FAA and the CAA require the existence of a valid arbitration agreement before arbitration can be compelled. (See 9 U.S.C. § 2 and <i>Code Civ. Proc.</i>, § 1281.2.) Here, Universal met its initial burden by attaching to its motion a copy of the purported arbitration agreement bearing Plaintiff's electronic signature. Plaintiff's declaration stating he did not recall electronically signing any arbitration agreement is sufficient to challenge the authenticity of the Arbitration Agreement. (See <i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165-166 and <i>Ruiz v. Moss Bros. Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 846.) The burden thus shifted to Universal to establish by a preponderance of the evidence that the signature was an act of Plaintiff. Universal met this burden. Universal relies on the declaration of its Director of Human Resources, Harlin Bhangoo. Mr. Bhangoo explains in detail the process for electronic review and signature for Universal's Arbitration Agreement. (See Bhangoo Decl. ¶¶ 8-12.) Mr. Bhangoo further states he reviewed electronic onboarding records pertaining to Plaintiff and the information he reviewed was entered into and stored in Universal's iCIMS system in the ordinary course of business at the time the Plaintiff completed the onboarding process in December 2023. (Bhangoo Decl. ¶ 14.) Mr. Bhangoo also states based on his review of Plaintiff's iCIMS employee account, Plaintiff successfully completed the onboarding process through iCIMS on December 12, 2023, "[d]uring which time, Plaintiff was presented with California Arbitration Agreement, and he expressly accepted the terms of the Agreement by signing it on December 12, 2023, at 5:44 p.m." (See Bhangoo Decl. ¶ 15.) Plaintiff argues the evidence shows a lack of security measures because Mr. Bhangoo admits that in addition to Plaintiff, "a select group of authorized Human Resources personnel who work for Universal" have access to Plaintiff's online account. (Bhangoo Decl. ¶ 10b.) However, Mr. Bhangoo also attests that "[t]hose employees only have the ability to view and print completed onboarding documents in read-only mode." (<i>Ibid.</i>) Mr. Bhangoo further declares only the potential employee "using his or her correct username and unique password may electronically access and sign onboarding documents with his or her electronic signature, including the Agreement." (Bhangoo Decl. ¶ 10d.) Mr. Bhangoo also attests that he "reviewed Plaintiff's Arbitration Agreement and there were no revisions or

		changes to Plaintiff's Arbitration Agreement at any point in time by anyone after Plaintiff executed the Arbitration Agreement on December 12, 2023." (Bhangoo Decl. ¶ 17.) The statements in the Bhangoo declaration detailing the steps the potential employee would have to take to electronically review and sign the Arbitration Agreement, as well as the security precautions concerning creation and use of the employee's username and password, are sufficient to establish that the electronic signature on the Arbitration Agreement is an act of Plaintiff. (See <i>Civ. Code</i> § 1633.9; <i>Ruiz, supra</i>, 232 Cal.App.4th at 843-844; <i>Espejo v. S. California Permanente Med. Grp.</i> (2016) 246 Cal.App.4th 1047, 1062.) Based on the foregoing, the motion is GRANTED as to Universal only. The Court notes Universal contends the Arbitration Agreement applies to defendant Adriana Ramirez as well, as an employee of Universal, and Ms. Ramirez is entitled to compel arbitration of Plaintiff's claims against her. However, Ms. Ramirez did not join in this motion, has not appeared in this matter, and appears to have not yet been served with the complaint. In addition, no evidence is offered showing Ms. Ramirez has made any demand for arbitration to Plaintiff. This matter is STAYED as to Universal only. Plaintiff's evidentiary objections are OVERRULED. <i>Counsel for Universal is to give notice of this ruling.</i>
8.	Wong v. SBS Trust Deed Network 23-1343409	Before the court is a motion for reconsideration of the Court's March 19, 2026 order filed by defendant Mitchell Willet (Defendant or Willet). As set forth below, the motion is DENIED. A motion for reconsideration must be "based upon new or different facts, circumstances, or law" than those before the court at the time of the original ruling. (<i>Code of Civ. Proc.</i> § 1008, <i>subd. (a).</i>) In addition, a party seeking reconsideration of a prior order based on "new or different facts, circumstances or law" must provide a satisfactory explanation for failing to present the information at the first hearing, i.e., a showing of reasonable diligence. (<i>Garcia v. Hejmadi</i> (1997) 58 Cal.App.4th 674, 690; <i>California Correctional Peace Officers Ass'n v. Virga</i> (2010) 181 Cal.App.4th 30, 47.) Here, Defendant fails to identify any new or different facts, circumstances or law than those before the Court at the time of the 03/19/26 order denying Willet's motion to set aside the default judgment. (ROA 126.) While Willet cites to the supplemental declaration, it was filed prior to the hearing. (ROA 125.) In fact, at the hearing, the Court specifically addressed the late-filed declaration and declined to consider it. (ROA 126.) The Court also finds Willet failed to adequately explain why the supplemental declaration and supporting evidence were not submitted with the original motion.

		But even if the Court were to reconsider its prior ruling, the evidence provided does not warrant reversal. The passport entries do not show Willet was out of the country on the day the proof of service shows he was personally served. (ROA 26; Suppl. Willet Decl., Ex. A.) And the credit card transactions are not proof of physical presence, as they do not show who made the purchases or that the card was physically in Willet's possession. (Id., Ex. B.) Moreover, the Court also denied the motion based on untimeliness, and the new evidence <u>does not overcome this finding</u>. (ROA 126.) The motion is therefore DENIED. <i>Counsel for Plaintiff shall give notice of this ruling.</i>
9.	Gibson Holdings, LLC v. Pure Rapsallion, Inc 24-1382993	Plaintiff Gibson Holdings, LLC's ("Plaintiff") unopposed Motion for Issue Sanctions ("Motion") is DENIED. Plaintiff requests issue sanctions against pro per defendant Daniel Adam Hewko aka Adam Hewko ("Adam"). Adam was previously represented by counsel, but that counsel substituted out. The pleadings Plaintiff served on Adam following Adam's former counsel stopping representation have all been e-served on Adam at adam@bottlecoatings.com and/or adam@glugwater.com. To electronically serve a pro per party, the pro per party must file consent to receive electronic service. (CA Rules of Court Rule 2.251.) There is nothing in the court's records which indicates Adam filed such consent. Adam's former counsel noted Adam's email address was adam@dynamicbrandsllc.com, which is neither of the two email addresses above. (ROA 184.) It is unclear where Plaintiff obtained the above addresses where electronic service has been sent. In addition to electronically serving Adam the present Motion, Plaintiff electronically served Adam the underlying court order which is the basis of this Motion. (ROA 270.) As that service was improper, Adam has not technically received notice of the court's order and therefore cannot have violated it. For the above reasons the Motion is DENIED. Plaintiff will need to properly serve the underlying order and then, if Adam does not comply, Plaintiff will need to file a new motion for sanctions should it so choose. The court also notes corporate defendant Pure Rapsallion, Inc. ("PRI") has been unrepresented since 10/02/25. (ROA 268.) The court hereby sets an OSC Re: Why Unrepresented Corporation Pure Rapsallion, Inc.'s Answer Should Not Be Struck for July 9, 2026, at 1:30 p.m. in Dept. C-20. <i>Plaintiff to give notice to all parties, including Pure Rapsallion, Inc.</i>
10.	Farkas v. Smith 23-1324888	(Off calendar)
11.	Millen v. General Motors LLV	(Continued)

	26-1554736	
12.	Mito's Holdings, Inc. v. Deniz Restaurants, LLC 25-1534622	Before the Court are three demurrers filed by defendants Deniz Restaurants, LLC (Deniz), Berkay Altintas (Berkay) and Nalan Altintas (Nalan)(collectively, Defendants) to the complaint of plaintiff Mito's Holdings, Inc. (Plaintiff). For the reasons set forth below, the demurrers by Deniz, Berkay and Nalan are SUSTAINED with 20 days' leave to amend on the 8th cause of action and OVERRULED on the 9th, 10th and 12th causes of action. In addition, the demurrers by Berkay and Nalan are SUSTAINED with 20 days' leave to amend on the 6th cause of action. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (<i>Code of Civ. Proc. § 430.10, subd. (e).</i>) Demurrer by Deniz <u>8th cause of action</u> (indemnification): <i>Civil Code section 2772</i> provides: "Indemnity is a contract by which one engages to save another from a legal consequence of the conduct of one of the parties, or of some other person." Because an indemnity agreement is basically a contract, it is subject to all the requirements applicable to contracts in general. (<i>Branson v. Sun Diamond Growers</i> (1994) 24 Cal.App.4th 327, 347; see also <i>San Mateo Union High School Dist. v. County of San Mateo</i> (2013) 213 Cal.App.4th 418, 439 [elements of breach of contract].) Here, Plaintiff fails to adequately allege damages, i.e., that a third party has filed a claim against Plaintiff arising out of Defendants' alleged wrongful conduct. Plaintiff simply alleges exposure to "potential claims, demands and liability," that has not materialized. (Compl. ¶ 164.) As such, the demurrer is SUSTAINED as to this cause of action with 20 days' leave to amend. <u>9th and 10th cause of action</u> (fraud claims): Defendant does not argue insufficiency of pleading allegations – only that these claims are duplicative of the breach of contract claim. Redundancy of a cause of action is not a ground on which a demurrer may be sustained. (<i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) Moreover, the Court finds the fraud claims are not duplicative of the breach of contract claim because they arise out of independent tortious conduct, not breach of contractual terms. (Compl. ¶¶ 173-180, 185-191.) As such, the demurrer is OVERRULED as to these causes of action. <u>12th cause of action</u> (intentional interference with prospective economic advantage): The Court finds Plaintiff adequately pleads the elements of this cause of action, including actual disruption that has caused damage to Plaintiff's reputation and goodwill. (<i>Korea Supply Co. v. Lockheed Martin Corp.</i> (2003) 29 Cal.4th 1134, 1153 [elements]; see also Compl. ¶¶ 209-216.) As such, the demurrer is OVERRULED as to this cause of action.

		Demurrers by Berkay and Nalan <u>6th cause of action</u>: Plaintiff fails to adequately plead actual disruption of the contractual relationship and damages resulting from Defendants' conduct. Instead, Plaintiff merely alleges "potential" disruption and "potential damages. (<i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55 [elements]; see also Compl. ¶¶ 150-152.) As such, the demurrers are SUSTAINED as to this cause of action with 20 days' leave to amend. <u>8th cause of action</u>: The demurrers are SUSTAINED as to this cause of action for the same reasons Deniz's demurrer is SUSTAINED. 20 days' leave to amend is granted. <u>9th, 10th, 12th causes of action</u>: The demurrers are OVERRULED as to these causes of action for the same reasons Deniz's demurrer is OVERRULED. <i>Counsel for Defendants shall give notice of this ruling.</i>
13.	JSPMG LLC v. Qu 25-1423928	Defendant Shen Qu's ("Defendant") Motion for Judgment on the Pleadings ("Motion") regarding plaintiff JSMPG, LLC's ("Plaintiff") First Amended Complaint ("FAC") is GRANTED. Defendant moves for judgment on the pleadings as to the first two causes of action ("COA") in the FAC based upon failure to state sufficient facts. (<i>Civ. Proc. Code § 438</i>.) "A motion for judgment on the pleadings is akin to a general demurrer; it tests the sufficiency of the complaint to state a cause of action. [Citation omitted.] The court must assume the truth of all factual allegations in the complaint, along with matters subject to judicial notice." (<i>Wise v. Pac. Gas & Elec. Co.</i> (2005) 132 Cal. App. 4th 725, 738, as modified (Sept. 19, 2005).) 1) COA No. 1 – Breach of Contract "To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage. [Citation.] If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal. App. 4th 299, 307.) Plaintiff attached Shareholder Universal Settlement Agreement ("Agreement") to the FAC at Ex. A. The Agreement was entered between Plaintiff and one Open Corner LLC ("OCLLC"), which appears to have been signed by Defendant in his capacity as a member of OCLLC. The Agreement only states that all assets and liabilities of two different non-party companies, Birchhill Inc and Apure Pharma LLC,

would be transferred to Plaintiff and that OCLLC would transfer its 22% equity in Birchhill Inc to Plaintiff. (FAC, Ex. A § 6.) The Agreement states it constitutes the entire agreement between the parties with respect to the subject matter and supersedes all other agreements/understandings. (FAC, Ex. A § 12.) The Agreement requires disputes to be settled in arbitration through the AAA in Delaware and that both Plaintiff and OCLLC are Delaware entities. (FAC, Ex. A § 11.)

Defendant is not a party to the Agreement. Although Plaintiff states, simply, that Defendant is liable under the *alter ego* theory and that he is the sole owner of OCLLC (FAC ¶¶ 3, 13), this is not sufficient to support *alter ego* liability on a contract. (*Norins Realty Co. v. Consol. Abstract & Title Guar. Co.* (1947) 80 Cal. App. 2d 879, 883.) As to the requirements under the Agreement, there is nothing in the Agreement regarding any equipment personally owned by Defendant, any wiring/manuals/activation codes personally owned by Defendant, payments made to Defendant, anything Defendant himself was required to transfer or do with regard to Plaintiff, or anything Defendant was to receive from Plaintiff. There is nothing in the Agreement requiring Defendant to provide "corrected wiring," that Defendant personally ensure the equipment would operate immediately and fully upon execution of the Agreement, or that Defendant personally warranted Apure would be "turnkey." (FAC ¶¶ 9, 14-15, 17, 19, 24.)

As 1) the *alter ego* allegations are not sufficient; 2) the contract was between OCLLC and Plaintiff, and not Defendant and Plaintiff; and 3) nothing in the Agreement required Defendant to personally perform any action alleged in the FAC, the Motion is **GRANTED** with one final leave to amend as to this COA.

2) COA No. 2 – Breach of Implied Covenant of Good Faith and Fair Dealing

"There is no obligation to deal fairly or in good faith absent an existing contract. [Citation.] If there exists a contractual relationship between the parties. . . the implied covenant is limited to assuring compliance with the express terms of the contract, and cannot be extended to create obligations not contemplated in the contract." (*Racine & Laramie, Ltd. v. Dep't of Parks & Recreation* (1992) 11 Cal. App. 4th 1026, 1032.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated. Thus, absent those limited cases where a breach of a consensual contract term is not claimed or alleged, the only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery."

		(<i>Careau & Co. v. Sec. Pac. Bus. Credit, Inc.</i> (1990) 222 Cal. App. 3d 1371, 1395.) This COA requires there to be a contract between the parties. As noted, Defendant did not sign the Agreement on his own behalf, Plaintiff has not identified any other contract to which Defendant is a party to with Plaintiff, and Plaintiff has not sufficiently pled <i>alter ego</i> liability to potentially hold Defendant liable under the Agreement. The Motion is GRANTED with one final leave to amend as to this COA. <i>Defendant to give notice.</i>
14.	Day v. Ghermezian 24-1372117	Before the Court is the Motion for Summary Judgment, or in the Alternative, for Summary Adjudication, filed on 1/12/26 by Defendants Raymond Ghermezian and Raymond Ghermezian, APLC ("Defendants"). The Motion for Summary Judgment is DENIED, along with Issue 7 in the Motion for Summary Adjudication, as Defendants have not shown that the Fifth Cause of Action presents an inappropriate basis for Declaratory Relief. However, the Motion for Summary Adjudication of Issues is GRANTED as to Issues 1, 3, 5, 6, and 8, which renders Issues 2 and 4 moot. <u>For the First and Third Causes of Action</u>, Defendants have presented evidence to demonstrate that Plaintiff Margo Day ("Plaintiff") cannot establish causation and damages for either claim. (UF 1- 14.) Defendants have also shown that they could not have just disbursed disputed funds without resolving the lien claims. (<i>Sanford v. Rasnick</i> (2016) 246 Cal.App.4th 1121, 1131.) Plaintiff has failed to identify any triable issue of material fact in response. Plaintiff asserts that Defendants failed to timely pay the Medicare lien, but Plaintiff has presented no evidence to show that she authorized them to do so. (UF 9-12.) Plaintiff asserts that Defendants did not timely distribute settlement proceeds but has failed to present evidence sufficient to show a triable issue of fact as to whether that is so, or why the sum later distributed to her was deficient. Nor has Plaintiff presented evidence to show that she would have recovered anything more in the underlying action if the liens and other costs that she has objected to here had not been incurred. (UF 1-14.) The Motion is therefore GRANTED on Issues 1 and 5, which moots Issues 2 and 4. <u>For the Second Cause of Action</u>, Defendants have presented evidence to show that what has been alleged is not sufficient to state a claim for extortion. In response, Plaintiff has not presented evidence to demonstrate that Defendants threatened to withhold money indisputably owed, or failed to pay the Medicare lien once authorized to do so. (UF 1-12.) The Motion is therefore GRANTED on Issue 3.

For the Fourth Cause of Action, Defendants have presented evidence to show that what has been alleged is not sufficient to state a claim for conversion. In response, Plaintiff argues that Defendants acted wrongfully in distributing the settlement proceeds, but has not presented evidence sufficient to show a triable issue of material fact as to whether that was so. (UF 1-14.) The Motion is therefore GRANTED on Issue 6.

Based on the foregoing, the Motion is also **GRANTED** on Issue 8, as Plaintiff has failed to present evidence sufficient to show a triable issue of fact for any surviving cause of action to support a punitive damages claim.

Defendants' Request for Judicial Notice, filed as ROA 74, is **GRANTED** under *Ev. Code §452(d)*, as to the existence of the record, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Plaintiff's Request for Judicial Notice, filed as ROA 100, is **DENIED**, as the arguments presented therein are not appropriate subjects for judicial notice.

Defendants' Evidentiary Objections in ROA 108 are **SUSTAINED** as to: Obj. 3 [legal conclusion; improper argument]; Obj. 4 as to the dates [foundation, personal knowledge]; Objs. 6, 7 and 8, as to the first sentence in each, from "in response to..." [legal conclusion; improper argument]; Obj. 9 as to "asking for a waiver..."; Obj. 10 as to "[Rule.....as I expected," and as to the final sentence [legal conclusion; improper argument]; Obj. No. 11 as to "asking for clarification... accounting" and as to "and blatantly lied...earlier" [foundation; improper argument]; Obj. 12 as to "This letter...APLC" [foundation]; Objs. 13 and 14, as to "even though... Medicare Lien" [foundation; improper argument]; Obj. 15 as to "includes the lie... Medicare Lien" [foundation; improper argument]; Obj. 16 as to "in an effort...1.15(d)(7)" [foundation, legal conclusion, improper argument]; and Obj. 18 as to "It appears to me... late" [foundation, improper argument]; otherwise **OVERRULED**.

Defendants' Evidentiary Objections in ROA 109 are **SUSTAINED** as to: Obj. 2 as to "Prior to...owe" [foundation, legal conclusion; improper argument]; Obj. 3 as to "filled with lies and half-truths" [foundation, legal conclusion, improper argument]; Objs. 5 and 6 [foundation, legal conclusion, improper argument]; Obj. 7 as to the first sentence [foundation, improper argument]; and Objs. 8 – 10, 12-15 [foundation, legal conclusion, improper argument]; otherwise **OVERRULED**.

Defendants are to give notice of this ruling.

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